

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 23, 2026
8:30 a.m./1:30 p.m.

14. LISA HOGAN V. ERIK HOGAN

23FL0307

Respondent filed a Request for Order (RFO) on April 21, 2026, seeking child custody and parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on May 29, 2026 and a review hearing on July 23, 2026. Proof of Service shows Petitioner was personally served on April 22, 2026.

Both parties attended CCRC on May 29, 2026, and reached a full agreement. On June 1, 2026, the parties submitted a stipulation to the court, which the court signed and adopted as its order. The stipulation included vacating the July 23, 2026 hearing.

Petitioner filed an ex parte request for emergency orders on June 4, 2026. On June 12, 2026, the court granted the request in part, allowing Petitioner to request Respondent to submit to drug/alcohol testing up to 24 hours prior to his parenting time or upon suspicion that Respondent is under the influence. If Respondent refuses to test, admits that he will not test clean, or tests positive, that visit will be cancelled without make up time. Respondent shall be responsible for the costs of all positive tests. Petitioner shall be responsible for the cost of all negative tests. The court set a hearing for July 23, 2026 and directed Petitioner to personally serve Respondent with the ex parte orders.

Petitioner filed an RFO on June 12, 2026, requesting the same orders as set forth in the ex parte request. There does appear to have been a clerical error in that the RFO does not state the date and time for the hearing, however, the Local Form F-20 does. Additionally, on the FL-300, box #7 is checked directing personal service of the FL-305 and FL-300. Upon review of the court file, there is no Proof of Service showing Respondent was personally served with the ex parte orders or the RFO.

The court vacates the ex parte orders and drops the RFO from calendar due to the lack of proper service.

All prior orders not in conflict with this order remain in full force and effect.

TENTATIVE RULING #14: THE COURT VACATES THE EX PARTE ORDERS AND DROPS THE RFO FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE. ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO

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LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.